***HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE (CONTINUED FROM: 12/11/2025 AND 01.08.26)**
FILED BY:
****TENTATIVE RULING:****
See line 10.

12. 9:00 AM CASE NUMBER: C24-03541
CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.
***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**
FILED BY: AIRBNB, INC.
****TENTATIVE RULING:****
Continued to February 19, 2026, 9:00 a.m., on the Court's own motion.

13. 9:00 AM CASE NUMBER: C25-01059
CASE NAME: SHELLEY MYTHEN VS. THE ESTATE OF IDA ALFARO,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: WILLIS, DONNA
****TENTATIVE RULING:****
The Court has received the First Amended Complaint filed by plaintiff on February 2, 2026 and defendant's opposition to the First Amended Complaint. Code of Civil Procedure section 472(a) requires that an amended complaint filed after a demurrer must be filed no later than the date the opposition to the demurrer is due. However, absent prejudice to the opposing party, courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial." (*Atkinson v. Elk Corp*. (2003) 109 Cal.App.4th 739, 761.) In light of this well-settled policy of the courts, the Court will allow the untimely First Amended Complaint, which now becomes the operative pleading.

The **demurrer hearing is vacated as moot**.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
***HEARING ON MOTION IN RE: FOR ORDER SUBSTITUTING PARTY PURSUANT TO CCP 377.31 AND PERMISSION TO AMEND COMPLAINT**
FILED BY:
****TENTATIVE RULING:****
Granted. The moving papers establish adequate grounds and there is no opposition.

15. 9:00 AM CASE NUMBER: MSC20-01311
CASE NAME: MICHAEL PRICE VS. STARLIGHT MARINE SERVICES, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: PRICE, MICHAEL
****TENTATIVE RULING:****

Plaintiffs Michael Price and Douglas Anderson move for preliminary approval of their class action and PAGA settlement with defendant Starlight Marine Services, Inc.

A. **Background and Settlement Terms**

The original complaint was filed by plaintiffs on July 16, 2020, raising class action claims against defendant, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, and failure to provide meal breaks. A notice of PAGA violations expanding the scope of the allegations was given, and on September 10, 2020, a First Amended complaint adding PAGA allegations was filed. This remains the operative complaint.

On September 9, 2021, defendant's motion to compel arbitration was denied.

On August 22, 2024, the court granted plaintiffs' motion for class certification, which designated three subclasses: a "meal period" subclass, an "on call" subclass, and a "waiting time" subclass. It set a class period of July 16, 2016 to February 15, 2021.

The settlement would create a gross settlement fund of $280,000. The class representative payment to plaintiff would be up to $10,000 for each of the two plaintiffs. The settlement administrator's costs would not exceed $3,250. PAGA penalties would be $15,000. Because the LWDA notices in question were filed before June 19, 2024, the employees would receive a 25% share of PAGA penalties. (Labor Code §2699(m), (v)(1).) The net amount paid directly to the class members would be about $245,000. The fund is non-reversionary. The class size is 26. The average payment per class member is about $9,423.

Unlike most settlements of this nature, attorney's fees are provided separately from the remainder of the settlement fund. Class counsel will seek approval of $300,000, by motion filed concurrently with the motion for final approval. (Settlement Agreement, Par. 3.2.2.) (See discussion below.)

The class members will not be required to file a claim. Class members may object to the settlement. They may not opt out, however, because that opportunity was provided as part of the class certification process. Aggrieved employees cannot opt out of the PAGA portion of the settlement. Funds would be apportioned to subclass members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided. (Par. 4.4.1-4.4.3) The funds would be tendered to the State Controller's unclaimed property fund.

The settlement contains release language for the class (see Par. 5.2) covering "all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint." Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal and informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. Counsel's declaration include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that a copy of the proposed settlement was served on the LWDA.

B. **Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. **Attorney fees, costs, and representative payments.**

The proposed fee of $300,000 is not taken as a part of the gross settlement amount. Because this is relatively unusual, the Court notes a few points. First, if the fee were computed as a percentage of the total recovery, it would be 51% of the settlement fund, which would draw careful scrutiny from the Court. Second, it appears to have the effect of meaning that if the Court approves less than $300,000, the difference benefits the defendant, not the class. Third, defendant may oppose the fee request. Fourth, the request will "not be based on any finding of a prevailing party[.]" Fifth, the settlement agreement is binding if approved and plaintiffs' counsel retain all of their duties to the class and the Court, regardless of the outcome of the fee motion. **If any of these statements are not correct, counsel should contest the tentative ruling and appear at the hearing.**

Litigation costs of will be considered as part of the attorney fees motion.

Settlement administration costs and the requested representative payment of $10,000 for each plaintiff will be reviewed at final approval. Representative payments will be reviewed under the Criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. **Conclusion**

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval, and grants the motion. The fee arrangement is subject to further review at the time of final approval and the fee motion.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Although the hearing date should be arranged through the Department 39 clerk, the hearing will be set in Department 16, the Honorable Benjamin Reyes, which is assigned this case for all purposes as of March 1, 2026. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

16. 9:00 AM CASE NUMBER: MSC21-00423
CASE NAME: MUTUKU VS NAZARI
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: MUTUKU, ELIJAH
TENTATIVE RULING:*

Before the Court is Plaintiff/Cross-Defendant Elijah Mutuku's motion for summary judgment. The motion relates to Defendant/Cross-Complainant Pervaiz Mohamad Nazari's cross-complaint for (1) unpaid overtime wages, (2) failure to pay minimum wages, (3) failure to provide meal periods, (4) failure to provide rest periods, (5) failure to provide accurate wage statements, (6) waiting time penalties, (7) failure to reimburse business expenses, (8) retaliation-employment, (9) intentional